

Subhash Chandra v. State of U.P.

Allahabad High Court · Division Bench · 5 July 2022 · Writ-C No. 16202 of 2022 · **Writ disposed; petitioner relegated to Clause 6.8 objection; coercive action stayed eight weeks.**

HEADNOTE

Without examining the merits of a challenge to a licensee demand notice dated 11 September 2020 and a Tehsildar recovery citation dated 27 December 2021, the Division Bench disposed of the writ on the distribution corporation's statement that an objection would be decided in a time-bound manner. Liberty was granted to file an objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; respondent no. 4 was directed to decide it in accordance with law after a reasonable opportunity of hearing within the next four weeks; and coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Subhash Chandra, approached the High Court seeking certiorari to quash a demand notice dated 11 September 2020 issued by respondent no. 4 of the power distribution corporation and a recovery citation dated 27 December 2021 issued by the Tehsildar, Soraon, Prayagraj. He also sought mandamus to decide his representation dated 29 September 2020. Counsel for the distribution corporation stated that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand; alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a licensee demand and tehsildar recovery citation may be disposed of by granting liberty to file an objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing the assessing officer to decide that objection in accordance with law after a reasonable opportunity of hearing within the next four weeks, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8

The writ was disposed without a merits ruling because the licensee undertook that a Clause 6.8 objection to the demand would be decided in a time-bound manner; the Court granted liberty to invoke that statutory path. ¶ 1

assessment-6.8-alternate-remedy

Challenge to the 11.9.2020 demand and 27.12.2021 recovery citation was remitted to the Clause 6.8 objection forum rather than decided on the writ. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

Respondent no. 4 was directed to decide a Clause 6.8 objection, if filed within four weeks, in accordance with law after hearing within the next four weeks, with coercive action stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 11.9.2020 AND THE RECOVERY CITATION DATED 27.12.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

